IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 208
CP.CAA-12(ND)/2023

IN THE MATTER OF:
Devyani Airport Services (Mumbai) Pvt Ltd. AND Devyani Food Street Pvt Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 22.05.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Saurabh Kalia, Advcoate.
For the IT Dept.	: Mr.Zoheb Hossain, Senior Standing Counsel, Mr.Sanjeev Menon, Jr Standing Counsel with Mr. Vivek Gaurav Adv
For the OL	: Ms. Hemlata Rawat, Advocate.
For the RD	: Ms. Shankari Mishra, Advocate.

ORDER

Heard the submissions made by Mr. Saurabh Kalia, Learned Counsel appearing for the Applicant. Ms. Shankari Mishra, Learned Counsel appearing for the Regional Director (RD) has submitted that there are certain observations raised by the RD which are as follows: -

"I. It is mentioned in the clause No. 05 of the scheme, that the scheme shall be effective from effective date. However, as per section 232(6) of the Companies Act, 2013 scheme shall be effective from the appointed date. Hence, the same may be clarified from the company.

II. With reference to the Transferor Company I, auditor has stated in his report for the FY 21-22, that the company has incurred cash losses of Rs. 54.23 million during the current FY and Rs. 25.64 million during the preceding FY 20-21.

III. With reference to Transferor Companies and the Transferee Company auditor has stated in his report for the FY 21-22 that the company

has not paid certain statutory dues on account of dispute and case for the same is pending before their authority."

Mr. Kalia, has submitted that he has filed an affidavit in response to the observations made by the RD. Mr. Kalia, also submitted that he has filed an undertaking with respect to the demand raised by the Income Tax Department.

Order **reserved**.

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Shammy
22.05.2023